

M/s Hamara Petrol Pump v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 December 2019 · WRIT - C No. 41529 of 2019 · **Writ disposed; petitioner to appear with objections; speaking final order directed; coercive action stayed; Section 127 appeal if aggrieved.**

HEADNOTE

A petrol-pump consumer sought certiorari to quash a recovery citation, alleging coercive action without hearing and without compliance with the U.P. Electricity Supply Code, 2005. The Division Bench did not decide those merits. It directed the petitioner to appear before Respondent No. 4 with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for six weeks or until disposal of the objection, whichever was earlier, and left any challenge to the final order to an appeal under Section 127 of the Electricity Act, 2003. Failure to appear would revive the citation automatically.

FACTUAL SUMMARY

M/s Hamara Petrol Pump filed a writ petition in the High Court of Judicature at Allahabad seeking certiorari to quash a recovery citation dated 17 January 2019 issued by respondent no. 3. The petitioner alleged that the electricity department was taking coercive recovery action without any opportunity of hearing and without following the provisions of the U.P. Electricity Supply Code, 2005. The electricity department appeared through counsel. The petition was heard on 16 December 2019 by a Division Bench.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation after recovery citation to speaking final order and Section 127 appeal

HOLDING

Where a consumer challenged a recovery citation alleging coercive action without hearing and without compliance with the U.P. Electricity Supply Code, 2005, the High Court, without deciding those merits, directed the consumer to appear before the concerned officer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for six weeks or until disposal of the objection, whichever was earlier, and left any challenge to the final order to an appeal under Section 127 of the Electricity Act, 2003, the citation standing revived automatically if the consumer failed to appear. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 The writ was disposed of without quashing the recovery citation; any grievance against the final order was left to an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal Respondent No. 4 was directed to pass a speaking final order on the petitioner's objections, after which any challenge was relegated to the Section 127 appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 17.01.2019 WAS ISSUED WITHOUT HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court took a lenient view and directed appearance and a speaking final order without examining those allegations. ¶ 1